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Title 33 —Navigation and Navigable Waters

Chapter I —Coast Guard, Department of Homeland Security

Subchapter O —Pollution

Part 156 Oil and Hazardous Material Transfer Operations

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PART 156—OIL AND HAZARDOUS MATERIAL TRANSFER OPERATIONS

Authority: 33 U.S.C. 1321(j); 46 U.S.C. 3703, 3703a, 3715, 70011, 70034; E.O. 11735, 3 CFR 1971-1975 Comp., p. 793; Department of Homeland Security Delegation No. 00170.1, Revision No. 01.2.

Editorial Note: Nomenclature changes to part 156 appear by USCG-2025-0186, 90 FR 12238, Mar. 17, 2025.

Subpart A—Oil and Hazardous Material Transfer Operations

§ 156.100 Applicability.

This subpart applies to the transfer of oil or hazardous material on the navigable waters or contiguous zone of the United States to, from, or within each vessel with a capacity of 250 barrels or more; except that, this subpart does not apply to transfer operations within a public vessel.

[CGD 86-034, 55 FR 36255, Sept. 4, 1990]

§ 156.105 Definitions.

Except as specifically stated in a section, the definitions in § 154.105 of this chapter apply to this subpart.

[CGD 90-071a, 59 FR 53291, Oct. 21, 1994]

§ 156.107 Alternatives.

- (a) The COTP may consider and approve alternative procedures, methods, or equipment standards to be used by a vessel or facility operator in lieu of any requirements in this part if:
 - (1) Compliance with the requirement is economically or physically impractical;
 - (2) The vessel or facility operator submits a written request for the alternative at least 30 days before operations under the alternative are proposed, unless the COTP authorizes a shorter time; and
 - (3) The alternative provides an equivalent level of safety and protection from pollution by oil or hazardous material, which is documented in the request.
- (b) The COTP takes final approval or disapproval action on any alternative requested, in writing, within 30 days of receipt of the request.

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 86-034, 55 FR 36255, Sept. 4, 1990]

§ 156.110 Exemptions.

- (a) The Assistant Commandant for Marine Safety, Security and Environmental Protection, acting for the Commandant, may grant an exemption or partial exemption from compliance with any requirement in this part, and the District Commander may grant an exemption or partial exemption from compliance with any operating condition or requirement in subpart C of this part, if:

- (1) The vessel or facility operator submits an application for exemption via the COTP at least 30 days before operations under the exemption are proposed, unless the COTP authorizes a shorter time; and
- (2) It is determined, from the application, that:
 - (i) Compliance with a specific requirement is economically or physically impractical;
 - (ii) No alternative procedures, methods, or equipment standards exist that would provide an equivalent level of safety and protection from pollution by oil or hazardous material; and
 - (iii) The likelihood of oil or hazardous material being discharged as a result of the exemption is minimal.
- (b) If requested, the applicant must submit any appropriate information, including an environmental and economic assessment of the effects of and reasons for the exemption and proposed procedures, methods or equipment standards.
- (c) The exemption may specify the procedures, methods, or equipment standards that will apply.
- (d) An exemption is granted or denied in writing. The decision of the Assistant Commandant for Marine Safety, Security and Environmental Protection is a final agency action.

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 88-052, 53 FR 25122, July 1, 1988; CGD 86-034, 55 FR 36255, Sept. 4, 1990; CGD 93-081, 60 FR 45017, Aug. 29, 1995; CGD 96-026, 61 FR 33666, June 28, 1996; CGD 93-056, 61 FR 41461, Aug. 8, 1996; CGD 97-023, 62 FR 33364, June 19, 1997; USCG-2002-12471, 67 FR 41333, June 18, 2002]

§ 156.111 Incorporation by reference.

- (a) Certain material is incorporated by reference into this part with the approval of the Director of the Federal Register under 5 U.S.C. 552(a) and 1 CFR part 51. To enforce any edition other than that specified in this section, the Coast Guard must publish notice of change in the FEDERAL REGISTER and the material must be available to the public. All approved material is available for inspection at the U.S. Coast Guard, Office of Vessel Activities (CG-CVC), 2703 Martin Luther King Jr. Avenue SE., Washington, DC 20593, telephone 202-372-1251, and is available from the sources listed below. It is also available for inspection at the National Archives and Records Administration (NARA). For information on the availability of this material at NARA, call 202-741-6030 or go to: http://www.archives.gov/federal_register/code_of_federal_regulations/ibr_locations.html.
- (b) International Chamber of Shipping, 12 Carthusian Street, London EC1M 6EB, England, telephone + 44 20 7417 8844, <http://www.marisec.org/>.
 - (1) Guide to Helicopter/Ship Operations, Fourth Edition, 2008, incorporation by reference approved for § 156.330(c).
 - (2) [Reserved]
- (c) International Maritime Organization (IMO), 4 Albert Embankment, London SE1 7SR, United Kingdom, telephone + 44(0)20 7735 7611, <http://www.imo.org/>.
 - (1) Manual on Oil Pollution, Section I: Prevention, Second Edition, 2011, incorporation by reference approved for § 156.410(c) and (f).
 - (2) [Reserved]

- (d) Oil Companies International Marine Forum (OCIMF), 15th Floor, 96 Victoria Street, London SW1E 5JW, England, telephone + 44(0)20 7654 1200, <http://www.ocimf.com/>.
- (1) Ship to Ship Transfer Guide, (Petroleum), Fourth Edition, 2005, incorporation by reference approved for § 156.330(b), § 156.410(c) and 156.410(f).
- (2) [Reserved]

[USCG-2010-0194, 80 FR 5935, Feb. 4, 2015]

§ 156.112 Suspension order.

The COTP or OCMI may issue a suspension order to suspend transfer operations to the vessel or facility operator when the COTP or OCMI finds there is a condition requiring action to prevent the discharge or threat of discharge of oil or hazardous material, or when the COTP or OCMI is unable to verify compliance with the regulations through an inspection. A suspension order:

- (a) May be effective immediately;
- (b) Is issued in writing unless it is effective immediately and then it may be issued orally and followed up in writing;
- (c) Includes a statement of each condition requiring correction to—
 - (1) Prevent the discharge of oil or hazardous material; or
 - (2) Comply with § 154.735 of this chapter; and
- (d) Is withdrawn when the COTP, OCMI, or District Commander, as applicable, determines that the condition requiring action to prevent the discharge or threat of discharge of oil or hazardous material has been corrected or no longer exists.

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 86-034, 55 FR 36255, Sept. 4, 1990]

§ 156.113 Compliance with suspension order.

- (a) No vessel or facility operator to whom a suspension order has been issued may conduct transfer operations from the time the order is effective until that order is withdrawn by the applicable COTP, OCMI, or by the District Commander.
- (b) The vessel or facility operator may request reconsideration of the suspension order either orally or in writing to the COTP or OCMI who issued it. The request may contain supporting documentation and evidence that the vessel or facility operator wishes to have considered.
- (c) Any person not satisfied with a ruling made under the procedure contained in paragraph (b) of this section may appeal that ruling in writing, except as allowed under paragraph (e) of this section, to the Coast Guard District Commander of the district in which the suspension order was issued. The appeal may contain supporting documentation and evidence that the appellant wishes to have considered. The appeal does not stay the effect of the suspension order while the COTP or OCMI ruling is being reviewed. The District Commander issues a ruling after reviewing the appeal.
- (d) The ruling by the District Commander is final agency action.

- (e) If the delay in presenting a written appeal under paragraph (c) of this section would have a significant adverse impact on the appellant, the appeal may initially be presented orally. If an initial presentation of the appeal is made orally, the appellant must submit the appeal in writing within five days of the oral presentation to the District Commander to whom the oral appeal was made, containing, at a minimum the basis for the appeal and a summary of the material presented orally.

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 86-034, 55 FR 36255, Sept. 4, 1990]

§ 156.115 Person in charge: Limitations.

- (a) No person may serve as the person in charge of transfer operations on more than one vessel at a time during transfers between vessels or between two or more vessels and a facility unless authorized by the COTP.
- (b) No person may serve as the person in charge of both a vessel and a facility during transfer operations unless authorized by the COTP.

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 86-034, 55 FR 36255, Sept. 4, 1990]

§ 156.118 Advance notice of transfer.

- (a) The COTP may require a facility operator to notify the COTP of the time and place of each transfer operation at least 4 hours before it begins for facilities that:
 - (1) Are mobile;
 - (2) Are in a remote location;
 - (3) Have a prior history of oil or hazardous material spills; or
 - (4) Conduct infrequent transfer operations.
- (b) In the case of a vessel to vessel transfer, the COTP may require a vessel operator of a lightering or fueling vessel to notify the COTP of the time and place of each transfer operation, as specified by the COTP, at least 4 hours before it begins.
- (c) No person may conduct such transfer operations until advance notice has been given as specified by the COTP.

Note: The notification may be accomplished by submitting a written schedule, periodically updated to be current.

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 86-034, 55 FR 36255, Sept. 4, 1990]

§ 156.120 Requirements for transfer.

A transfer is considered to begin when the person in charge on the transferring vessel or facility and the person in charge on the receiving facility or vessel first meet to begin completing the declaration of inspection, as required by § 156.150 of this part. No person shall conduct an oil or hazardous material transfer operation unless:

- (a) The vessel's moorings are strong enough to hold during all expected conditions of surge, current, and weather and are long enough to allow adjustment for changes in draft, drift, and tide during the transfer operation;
- (b) Transfer hoses and loading arms are long enough to allow the vessel to move to the limits of its moorings without placing strain on the hose, loading arm, or transfer piping system;
- (c) Each hose is supported to prevent kinking or other damage to the hose and strain on its coupling.
- (d) Each part of the transfer system is aligned to allow the flow of oil or hazardous material;
- (e) Each part of the transfer system not necessary for the transfer operation is securely blanked or shut off;
- (f) The end of each hose and loading arm that is not connected for the transfer of oil or hazardous material is blanked off using the closure devices required by §§ 154.520 and 155.805 of this chapter;
- (g) The transfer system is attached to a fixed connection on the vessel and the facility except that when a vessel is receiving fuel, an automatic back pressure shutoff nozzle may be used;
- (h) Each overboard discharge or sea suction valve that is connected to the vessel's transfer or cargo tank system is sealed or lashed in the closed position; except when used to receive or discharge ballast in compliance with 33 CFR part 157;
- (i) Each transfer hose has no unrepaired loose covers, kinks, bulges, soft spots, or any other defect which would permit the discharge of oil or hazardous material through the hose material and no gouges, cuts, or slashes that penetrate the first layer of hose reinforcement ("reinforcement" means the strength members of the hose, consisting of fabric, cord and/or metal);
- (j) Each hose or loading arm in use meets §§ 154.500 and 154.510 of this chapter, respectively;
- (k) Each connection meets § 156.130;
- (l) Any monitoring devices required by § 154.525 of this chapter are installed and operating properly;
- (m) The discharge containment equipment required by § 154.545 of this chapter is readily accessible or deployed as applicable;
- (n) The discharge containment required by §§ 154.530, 155.310, and 155.320 of this chapter, as applicable, is in place and periodically drained to provide the required capacity;
- (o) Each drain and scupper is closed by the mechanical means required by § 155.310;
- (p) All connections in the transfer system are leak free except that a component in the transfer system, such as the packing glands of a pump, may leak at a rate that does not exceed the capacity of the discharge containment provided during the transfer operation;
- (q) The communications required by §§ 154.560 and 155.785 of this chapter are operable for the transfer operation;
- (r) The emergency means of shutdown required by §§ 154.550 and 155.780 of this chapter, as applicable, is in position and operable;
- (s) There is a person in charge on the transferring vessel or facility and the receiving vessel or facility except as otherwise authorized under § 156.115;
- (t) Each person in charge required by paragraph (s) of this section:

- (1) Is at the site of the transfer operation and immediately available to the transfer personnel;
- (2) Has readily available in the marine transfer area a copy of the most recently examined facility operations manual or vessel transfer procedures, as appropriate; and
- (3) Conducts the transfer operation in accordance with the facility operations manual or vessel transfer procedures, as appropriate;
- (u) The personnel required, under the facility operations manual and the vessel transfer procedures, to conduct the transfer operation:
 - (1) Are on duty; and
 - (2) Conduct the transfer operation in accordance with the facility operations manual or vessel transfer procedures, as appropriate;
- (v) At least one person is at the site of the transfer operation who fluently speaks the language or languages spoken by both persons in charge;
- (w) The person in charge of the transfer on the transferring vessel or facility and the person in charge of it on the receiving vessel or facility have held a conference, to ensure that each person in charge understands—
 - (1) The identity of the product to be transferred;
 - (2) The sequence of transfer operations;
 - (3) The transfer rate;
 - (4) The name or title and location of each person participating in the transfer operation;
 - (5) Details of the transferring and receiving systems including procedures to ensure that the transfer pressure does not exceed the maximum allowable working pressure (MAWP) for each hose assembly, loading arm and/or transfer pipe system;
 - (6) Critical stages of the transfer operation;
 - (7) Federal, state, and local rules that apply to the transfer of oil or hazardous material;
 - (8) Emergency procedures;
 - (9) Discharge containment procedures;
 - (10) Discharge reporting procedures;
 - (11) Watch or shift arrangement;
 - (12) Transfer shutdown procedures; and,
 - (13) If the persons use radios, a predetermined frequency for communications during the transfer, agreed upon by both.
- (x) The person in charge of transfer operations on the transferring vessel or facility and the person in charge of transfer operations on the receiving vessel or facility agree to begin the transfer operation;
- (y) Between sunset and sunrise the lighting required by §§ 154.570 and 155.790 of this chapter is provided; and
- (z) For transfer operations between tank barges from sunset to sunrise, lighting is provided as described in § 155.790 of this chapter.

- (aa) A transfer operation which includes collection of vapor emitted to or from a vessel's cargo tanks through a vapor control system (VCS) not located on the vessel must have the following verified by the person in charge:
- (1) Each manual valve in the vapor collection system is correctly positioned to allow the collection of cargo vapor;
 - (2) A vapor collection hose or arm is connected to the vessel's vapor connection;
 - (3) The electrical insulating device required by § 154.810(g) of this chapter or 46 CFR 39.40-3(c) is fitted between the facility vapor connection and the vessel vapor connection;
 - (4) The initial transfer rate and the maximum transfer rate are determined;
 - (5) The maximum and minimum operating pressures at the facility vapor connection are determined;
 - (6) The tank barge overfill control system, if installed, is connected to the facility, tested, and operating properly;
 - (7) The following have been performed not more than 24 hours prior to the start of the transfer operation or in accordance with 33 CFR 154.2150(b):
 - (i) Each alarm and automatic shutdown system required by subpart E of part 154 of this chapter and 46 CFR part 39 has been tested and found to be operating properly, and
 - (ii) Analyzers required by 33 CFR 154.2105(a) and (j) and 154.2107(d) and (e) or 46 CFR 39.40-3(a) have been checked for calibration by use of a span gas;
 - (8) Each vapor recovery hose has no unrepaired loose covers, kinks, bulges, soft spots, or any other defect which would permit the discharge of vapor through the hose material, and no external gouges, cuts, or slashes that penetrate the first layer of hose reinforcement; and
 - (9) The oxygen content in the vapor space of each of the vessel's cargo tanks connected to the vapor collection system, if inerted, is—
 - (i) At or below 60 percent by volume of the cargo's minimum oxygen concentration for combustion; or
 - (ii) At or below 8 percent by volume, at the start of cargo transfer, for vapor of crude oil, gasoline blends, or benzene;
 - (10) The freezing point of each cargo has been determined. If there is a possibility that the ambient air temperature during transfer operations will be at or below the freezing point of the cargo, adequate precautions have been taken to prevent freezing of vapor or condensate, or to detect and remove the liquid condensate and solids to prevent accumulation;
 - (11) If the cargo has the potential to polymerize, adequate precautions have been taken to prevent and detect polymerization of the cargo vapors; and
 - (12) The VCS has been cleaned, in accordance with 33 CFR 154.2150(p), between transfers of incompatible cargoes.
- (bb) If the transfer operation involves loading oil, as defined in § 151.05 of this chapter, into a cargo tank, the overfill device required by § 155.480 of this chapter is installed and operating properly.
- (cc) Smoking is not permitted in the facilities marine transfer area except in designated smoking areas.

- (dd) Welding, hot work operations and smoking are prohibited on vessels during the transfer of flammable or combustible materials, except that smoking may be permitted in accommodation areas designated by the master.

(Approved by the Office of Management and Budget under control number 1625-0039)

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 88-102, 55 FR 25445, June 21, 1990; CGD 86-034, 55 FR 36255, Sept. 4, 1990; CGD 90-071a, 59 FR 53291, Oct. 21, 1994; CGD 93-056, 61 FR 41461, Aug. 8, 1996; CGD 79-116, 62 FR 25127, May 8, 1997; USCG-2001-9046, 67 FR 58524, Sept. 17, 2002; USCG-2006-25150, 71 FR 39210, July 12, 2006; 73 FR 79316, Dec. 29, 2008; USCG-1999-5150, 78 FR 42641, July 16, 2013; USCG-2020-0315, 86 FR 43941, Aug. 11, 2021]

§ 156.125 Discharge cleanup.

- (a) Each person conducting the transfer operation shall stop the transfer operation whenever oil or hazardous material from any source is discharged:
 - (1) In the transfer operation work area; or
 - (2) Into the water or upon the adjoining shoreline in the transfer area.
- (b) Except as permitted under paragraph (c) of this section, no person may resume the transfer operation after it has been stopped under paragraph (a) of this section, unless:
 - (1) Oil or hazardous material discharged in the transfer operation work area is cleaned up; and
 - (2) Oil or hazardous material discharged into the water or upon the adjoining shoreline is cleaned up, or is contained and being cleaned up.
- (c) The COTP may authorize resuming the transfer operation if it is deemed appropriate.

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 86-034, 55 FR 36255, Sept. 4, 1990]

§ 156.130 Connection.

- (a) Each person who makes a connection for transfer operations shall:
 - (1) Use suitable material in joints and couplings to ensure a leak-free seal;
 - (2) Use a bolt in at least every other hole, and in no case less than four bolts, in each temporary bolted connection that uses a flange that meets American National Standards Institute (ANSI) standard flange requirements under § 154.500(d)(2) of this chapter;
 - (3) Use a bolt in each hole in each temporary bolted connection that uses a flange other than one that meets ANSI standards;
 - (4) Use a bolt in each hole of each permanently connected flange;
 - (5) Use bolts of the correct size in each bolted connection; and
 - (6) Tighten each bolt and nut uniformly to distribute the load and sufficiently to ensure a leak free seal.
- (b) A person who makes a connection for transfer operations must not use any bolt that shows signs of strain or is elongated or deteriorated.

- (c) Except as provided in paragraph (d) of this section, no person may use a connection for transfer operations unless it is:
 - (1) A bolted or full threaded connection; or
 - (2) A quick-connect coupling acceptable to the Commandant.
- (d) No person may transfer oil or hazardous material to a vessel that has a fill pipe for which containment cannot practically be provided unless an automatic back pressure shutoff nozzle is used.

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 86-034, 55 FR 36256, Sept. 4, 1990]

§ 156.150 Declaration of inspection.

- (a) No person may transfer oil or hazardous material to or from a vessel unless each person in charge, designated under §§ 154.710 and 155.700 of this chapter, has filled out and signed the declaration of inspection form described in paragraph (c) of this section.
- (b) No person in charge may sign the declaration of inspection unless he or she has determined by inspection, and indicated by initialling in the appropriate space on the declaration of inspection form, that the facility or vessel, as appropriate, meets § 156.120.
- (c) The declaration of inspection may be in any form but must contain at least:
 - (1) The name or other identification of the transferring vessel or facility and the receiving vessel or facility;
 - (2) The address of the facility or location of the transfer operation if not at a facility;
 - (3) The date and time the transfer operation is started;
 - (4) A list of the requirements in § 156.120 with spaces on the form following each requirement for the person in charge of the vessel or facility to indicate by initialling that the requirement is met for the transfer operation; and
 - (5) A space for the date, time of signing, signature, and title of each person in charge during transfer operations on the transferring vessel or facility and a space for the date, time of signing, signature, and title of each person in charge during transfer operations on the receiving facility or vessel certifying that all tests and inspections have been completed and that they are both ready to begin transferring product; and
 - (6) The date and time the transfer operation is completed.
- (d) The form for the declaration of inspection may incorporate the declaration-of-inspection requirements under 46 CFR 35.35-30.
- (e) The vessel and facility persons in charge shall each have a signed copy of the declaration of inspection available for inspection by the COTP during the transfer operation.
- (f) The operators of each vessel and facility engaged in the transfer operation shall retain a signed copy of the declaration of inspection on board the vessel or at the facility for at least 1 month from the date of signature.

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 86-034, 55 FR 36256, Sept. 4, 1990; CGD 93-056, 61 FR 41461, Aug. 8, 1996]

§ 156.160 Supervision by person in charge.

- (a) No person may connect or disconnect a hose, top off a tank, or engage in any other critical procedures during the transfer operation unless the person in charge, required by § 156.120(s), supervises that procedure.
- (b) No person may start the flow of oil or hazardous material to or from a vessel unless instructed to do so by either person in charge.
- (c) No person may transfer oil or hazardous material to or from a vessel unless each person in charge is in the immediate vicinity and immediately available to the transfer personnel.

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 86-034, 55 FR 36256, Sept. 4, 1990]

§ 156.170 Equipment tests and inspections.

- (a) Except as provided in paragraph (d) of this section, no person may use any equipment listed in paragraph (c) of this section for transfer operations unless the vessel or facility operator, as appropriate, tests and inspects the equipment in accordance with paragraphs (b), (c) and (f) of this section and the equipment is in the condition specified in paragraph (c) of this section.
- (b) During any test or inspection required by this section, the entire external surface of the hose must be accessible.
- (c) For the purpose of paragraph (a) of this section:
 - (1) Each nonmetallic transfer hose must:
 - (i) Have no unrepaired loose covers, kinks, bulges, soft spots or any other defect which would permit the discharge of oil or hazardous material through the hose material, and no gouges, cuts or slashes that penetrate the first layer of hose reinforcement as defined in § 156.120(i).
 - (ii) Have no external deterioration and, to the extent internal inspection is possible with both ends of the hose open, no internal deterioration;
 - (iii) Not burst, bulge, leak, or abnormally distort under static liquid pressure at least 1¹/₂ times the maximum allowable working pressure; and
 - (iv) Hoses not meeting the requirements of paragraph (c)(1)(i) of this section may be acceptable after a static liquid pressure test is successfully completed in the presence of the COTP. The test medium is not required to be water.
 - (2) Each transfer system relief valve must open at or below the pressure at which it is set to open;
 - (3) Each pressure gauge must show pressure within 10 percent of the actual pressure;
 - (4) Each loading arm and each transfer pipe system, including each metallic hose, must not leak under static liquid pressure at least 1¹/₂ times the maximum allowable working pressure; and
 - (5) Each item of remote operating or indicating equipment, such as a remotely operated valve, tank level alarm, or emergency shutdown device, must perform its intended function.
- (d) No person may use any hose in underwater service for transfer operations unless the operator of the vessel or facility has tested and inspected it in accordance with paragraph (c)(1) or (c)(4) of this section, as applicable.

- (e) The test fluid used for the testing required by this section is limited to liquids that are compatible with the hose tube as recommended by the hose manufacturer.
- (f) The frequency of the tests and inspections required by this section must be:
 - (1) For facilities, annually or not less than 30 days prior to the first transfer conducted past one year from the date of the last tests and inspections;
 - (2) For a facility in caretaker status, not less than 30 days prior to the first transfer after the facility is removed from caretaker status; and
 - (3) For vessels, annually or as part of the biennial and mid-period inspections.
- (g) If a facility or vessel collects vapor emitted to or from a vessel cargo tank with a vapor control system, the system must not be used unless the following tests and inspections are satisfactorily completed:
 - (1) Each vapor hose, vapor collection arm, pressure or vacuum relief valve, and pressure sensor is tested and inspected in accordance with paragraphs (b), (c), and (f) of this section;
 - (2) Each remote operating or indicating device is tested for proper operation in accordance with paragraph (f) of this section;
 - (3) Each detonation arrester required by 33 CFR 154.2105, 154.2108(b), 154.2109, 154.2110, 154.2111, and 154.2204, or 46 CFR 39.4003, and each flame arrester required by 33 CFR 154.2103, 154.2105(j), and 154.2203 has been inspected internally within the last year, or sooner if operational experience has shown that frequent clogging or rapid deterioration is likely; and
 - (4) Each hydrocarbon and oxygen analyzer required by 33 CFR 154.2105(a) and (j), 154.2107(d) and (e), and 154.2110 or 46 CFR 39.4003 is calibrated:
 - (i) Within the previous two weeks, or
 - (ii) Within 24 hours prior to operation when the vapor control system is operated less frequently than once a week.
- (h) Upon the request of the owner or operator, the COTP may approve alternative methods of compliance to the testing requirements of paragraph (c) of this section if the COTP determines that the alternative methods provide an equal level of protection.
- (i) Notwithstanding the general provisions of 33 CFR 156.107(a) relating to the authority of the Captain of the Port to approve alternatives, the owner or operator may request the written approval of the Commandant (CG-ENG), U.S. Coast Guard, 2100 2nd St. SW., Stop 7126, Washington, DC 20593-7126, for alternative methods of compliance to the testing and inspection requirements of paragraph (g)(3) of this section. The Commandant (CG-ENG) will grant that written approval upon determination that the alternative methods provide an equivalent level of safety and protection from fire, explosion, and detonation. Criteria to consider when evaluating requests for alternative methods may include, but are not limited to: operating and inspection history, type of equipment, new technology, and site-specific conditions that support the requested alternative.

(Approved by the Office of Management and Budget under control number 1625-0095)

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 88-102, 55 FR 25445, June 21, 1990; CGD 86-034, 55 FR 36256, Sept. 4, 1990; CGD 93-056, 61 FR 41461, Aug. 8, 1996; USCG-2006-25150, 71 FR 39210, July 12, 2006; USCG-1999-5150, 78 FR 42641, July 16, 2013]

Subpart B—Special Requirements for Lightering of Oil and Hazardous Material Cargoes

Source: CGD 78-180, 49 FR 11172, Mar. 26, 1984, unless otherwise noted.

§ 156.200 Applicability.

This subpart applies to each vessel to be lightered and each service vessel engaged in a lightering operation in the marine environment beyond the baseline from which the territorial sea is measured when the oil or hazardous material lightered is destined for a port or place subject to the jurisdiction of the U.S. This subpart does not apply to lightering operations involving public vessels, or to the dedicated response vessels and vessels of opportunity in accordance with the National Contingency Plan (40 CFR parts 9 and 300) when conducting response activities, or to tank vessels of 150 gross tons or more engaged in the transfer of oil cargo between tank vessels at sea on or after April 1, 2012. These rules are in addition to the rules of subpart A of this part, as well as the rules in the applicable sections of parts 151, 153, 155, 156, and 157 of this chapter.

[CGD 93-081, 60 FR 45017, Aug. 29, 1995, as amended by USCG-2010-0194, 80 FR 5935, Feb. 4, 2015]

§ 156.205 Definitions.

- (a) In addition to the terms defined in this section, the definitions in § 154.105 of this chapter apply to this subpart and to subpart C.
- (b) As used in this subpart and subpart C:

Lightering or Lightering operation means the transfer of a cargo of oil in bulk from one oil tanker less than 150 gross tons to another oil tanker less than 150 gross tons, or a cargo of hazardous material in bulk from one vessel to another, including all phases of the operation from the beginning of the mooring operation to the departure of the service vessel from the vessel to be lightered, except when that cargo is intended only for use as fuel or lubricant aboard the receiving vessel.

Marine environment means—

- (1) The navigable waters of the United States;
- (2) The waters of an area over which the United States asserts exclusive fishery management authority; and
- (3) The waters superadjacent to the Outer Continental Shelf of the United States.

Service vessel means the vessel which receives a cargo of oil or a hazardous material from another vessel in a lightering operation.

Vessel to be lightered means the vessel which transports a cargo of oil or a hazardous material to a place within the marine environment for transfer of that cargo to another vessel for further transport to a port or place subject to the jurisdiction of the United States. The term “vessel to be lightered” does not include drilling rigs, or offshore supply vessels transferring cargo intended for use as fuel or lubricant aboard the receiving vessel.

Work includes any administrative duties associated with the vessel whether performed on board the vessel or onshore.

[CGD 78-180, 49 FR 11172, Mar. 26, 1984, as amended by CGD 86-034, 55 FR 36256, Sept. 4, 1990; CGD 90-052, 58 FR 48436, Sept. 15, 1993; CGD 93-081, 60 FR 45017, Aug. 29, 1995; USCG-2010-0194, 80 FR 5935, Feb. 4, 2015]

§ 156.210 General.

- (a) No vessel may transfer oil or hazardous materials in a port or place subject to the jurisdiction of the United States, if the cargo has been lightered from another vessel, unless:
 - (1) The regulations in this subpart have been complied with;
 - (2) Both the vessel to be lightered and service vessel have, on board, at the time of transfer, a valid Certificate of Inspection, Certificate of Compliance, or a Tank Vessel Examination Letter, as would have been required under 46 U.S.C. 3710 or 3711, had the transfer taken place in a port or place subject to the jurisdiction of the United States;
 - (3) The delivering and receiving vessels have on board at the time of transfer, evidence that each vessel is operating in compliance with section 311(j) of the Federal Water Pollution Control Act (33 U.S.C. 1321(j)) and applicable regulations issued under the authority of section 311(j) in the form of a Declaration of Inspection as required by § 156.150 and a vessel response plan if required under part 155 of this chapter; and

Note: Under 46 U.S.C. 3715, the delivering and receiving vessels must have on board at the time of transfer, a Certificate of Financial Responsibility that would be required if the transfer had taken place in a location subject to the jurisdiction of the U.S. Regulations concerning Certificates of Financial Responsibility for vessels using the navigable waters of the U.S. are in part 130 of this chapter.

 - (4) The vessel to be lightered has on board, at the time of transfer, an International Oil Pollution Prevention (IOPP) Certificate or equivalent documentation of compliance with Annex I of the International Convention for the Prevention of Pollution from Ships, 1973, as modified by the Protocol of 1978 relating thereto (MARPOL 73/78), as would be required by part 151 of this chapter for vessels in navigable waters of the United States. The IOPP Certificate or documentation of compliance shall be that prescribed by §§ 151.19 and 151.21 of this chapter, and shall be effective under the same timetable as specified in § 151.19.
- (b) Lightering operations involving hazardous materials, other than oil, may be conducted only with the specific approval of the Commandant. A request to lighter hazardous materials, other than oil, must be submitted to Commandant (CG-ENG) prior to the planned beginning of lightering operations. The request must include the information described in § 156.215(a) to the extent known, for the initial transfer, and the estimated frequency of subsequent lightering operations. After the entry into force of Annex II to MARPOL 73/78, vessels lightering hazardous materials shall carry an International Pollution Prevention Certificate for the Carriage of Noxious Liquid Substances in Bulk (1973), if required by Annex II to MARPOL 73/78, or equivalent documentation of compliance with the annex.
 - (c) In an emergency, the COTP, upon request, may authorize a deviation from any rule in this part if the COTP determines that its application will endanger persons, property, or the environment.

- (d) On vessels conducting lightering operations in a designated lightering zone, an officer or seaman may not work, except in an emergency or a drill, more than 15 hours in any 24-hour period, or more than 36 hours in any 72-hour period, including the 24-hour and 72-hour periods prior to commencing lightering operations.

[CGD 78-180, 49 FR 11172, Mar. 29, 1984, as amended by CGD 88-052, 53 FR 25122, July 1, 1988; CGD 90-052, 58 FR 48436, Sept. 15, 1993; CGD 93-081, 60 FR 45017, Aug. 29, 1995; USCG-2002-12471, 67 FR 41333, June 18, 2002; USCG-2006-24371, 74 FR 11212, Mar. 16, 2009; USCG-2010-0351, 75 FR 36285, June 25, 2010; USCG-2018-0874, 84 FR 30880, June 28, 2019]

§ 156.215 Pre-arrival notices.

- (a) The master, owner or agent of each vessel to be lightered must give at least 24 hours advance notice to the Captain of the Port nearest the lightering location or zone, prior to arrival in the lightering location or zone. This advance notice must include:
 - (1) The vessel's name, call sign or official number, and registry;
 - (2) The cargo type (if oil) or shipping name (if hazardous material) and approximate amount on board;
 - (3) The number of transfers expected and the amount of cargo expected to be transferred during each transfer;
 - (4) The lightering location or zone to be used;
 - (5) The estimated time of arrival in the lightering location or zone;
 - (6) The estimated duration of transfer operations; and
 - (7) The name and destination of service vessel(s).
- (b) In the event the estimated time of arrival in the lightering location or zone changes by more than six hours, the Master, owner or agent of each vessel to be lightered must advise the Captain of the Port of this change as soon as possible.
- (c) Where lightering is conducted as a result of collision, grounding, tank rupture or any similar emergency, immediate notice must be given to the Captain of the Port.
- (d) In addition to the other requirements in this section, the master, owner, or agent of a vessel that requires a Tank Vessel Examination (TVE) or other special Coast Guard inspection in order to lighter in a designated lightering zone must request the TVE or other inspection from the cognizant Captain of the Port at least 72 hours prior to commencement of lightering operations.

[CGD 78-180, 49 FR 11172, Mar. 26, 1984, as amended by CGD 90-052, 58 FR 48437, Sept. 15, 1993; CGD 93-081, 60 FR 45017, Aug. 29, 1995]

§ 156.220 Reporting of incidents.

- (a) An immediate report must be made to the nearest Captain of the Port, by the service vessel, if fire, explosion, collision, grounding or any similar emergency, which poses a threat to the vessels involved, occurs during lightering.
- (b) Any discharge of oil or hazardous material into the water shall be reported, by the service vessel, in accordance with the procedures specified in § 151.15 of this chapter.

§ 156.225 Designation of lightering zones.

The District Commander is delegated the authority to designate lightering zones and their operating requirements, where they are necessary for safety or environmental protection. When a lightering zone has been designated, lightering and STS Operations in a given geographic area may only be conducted within the designated lightering zone.

[USCG-2010-0194, 80 FR 5935, Feb. 4, 2015]

§ 156.230 Factors considered in designating lightering zones.

The following factors are considered in designating a lightering zone:

- (a) The findings of the environmental analysis or, if prepared, the Environmental Impact Statement;
- (b) The proximity of the zone to:
 - (1) Shipping lanes;
 - (2) Vessel traffic schemes or vessel separation systems;
 - (3) Anchorages;
 - (4) Fixed structures;
 - (5) Designated marine sanctuaries;
 - (6) Commercial and recreational fishing areas;
 - (7) Environmentally sensitive areas; and
 - (8) Designated units of the National Park System, National Wild and Scenic Rivers System, National Wilderness Preservation System, properties included on the National Register of Historic Places and National Registry of Natural Landmarks, and National Wildlife Refuge System.
- (c) The traditional use of areas for lightering operations;
- (d) The normal weather and sea conditions in the areas, and their effect on lightering operations, and the fate of possible cargo discharges;
- (e) The depth of water and underwater obstructions that may adversely impact anchorages and clearance of vessels;
- (f) Other relevant safety, environmental, or economic data.

Subpart C—Lightering Zones and Operational Requirements for the Gulf of America

Source: CGD 93-081, 60 FR 45017, Aug. 29, 1995, unless otherwise noted.

§ 156.300 Designated lightering zones.

The following lightering zones are designated in the Gulf of America and are more than 60 miles from the baseline from which the territorial sea is measured:

- (a) ***Southtex—lightering zone.*** This lightering zone and the geographic area for this zone are coterminous and consist of the waters bounded by a line connecting the following points beginning at:

<i>Latitude N.</i>	<i>Longitude W.</i>
27°40'00",	93°00'00", thence to
27°40'00",	94°35'00", thence to
28°06'30",	94°35'00", thence to
27°21'00",	96°00'00", thence to
26°30'00",	96°00'00", thence to
26°30'00",	93°00'00", and thence to the point of beginning.

(NAD 83)

- (b) ***Gulfmex No. 2—lightering zone.*** This lightering zone and the geographic area for this zone are coterminous and consist of the waters bounded by a line connecting the following points beginning at:

<i>Latitude N.</i>	<i>Longitude W.</i>
27°53'00",	89°00'00", thence to
27°53'00",	91°30'00", thence to
26°30'00",	91°30'00", thence to
26°30'00",	89°00'00", and thence to the point of beginning.

(NAD 83)

- (c) ***Offshore Pascagoula No. 2—lightering zone.*** This lightering zone and the geographic area for this zone are coterminous and consist of the waters bounded by a line connecting the following points beginning at:

<i>Latitude N.</i>	<i>Longitude W.</i>
29°20'00",	87°00'00", thence to
29°12'00",	87°45'00", thence to
28°39'00",	88°00'00", thence to
28°00'00",	88°00'00", thence to
28°00'00",	87°00'00", and thence to the point of beginning.

(NAD 83)

- (d) **South Sabine Point—lightering zone.** This lightering zone and the geographic area for this zone are coterminous and consist of the waters bounded by a line connecting the following points beginning at:

<i>Latitude N.</i>	<i>Longitude W.</i>
28°30'00",	92°38'00", thence to
28°44'00",	93°24'00", thence to
28°33'00",	94°00'00", thence to
28°18'00",	94°00'00", thence to
28°18'00",	92°38'00", and thence to the point of beginning.

(NAD 83)

§ 156.310 Prohibited areas.

Lightering operations and STS Operations are prohibited within the following areas in the Gulf of America:

- (a) **Claypile—prohibited area.** This prohibited area consists of the waters bounded by a line connecting the following points beginning at:

<i>Latitude N.</i>	<i>Longitude W.</i>
28°15'00",	94°35'00", thence to
27°40'00",	94°35'00", thence to
27°40'00",	94°00'00", thence to
28°33'00",	94°00'00", and thence to the point of beginning.

(NAD 83)

- (b) **Flower Garden—prohibited area.** This prohibited area consists of the waters bounded by a line connecting the following points beginning at:

<i>Latitude N.</i>	<i>Longitude W.</i>
27°40'00",	94°00'00", thence to
28°18'00",	94°00'00", thence to
28°18'00",	92°38'00", thence to
28°30'00",	92°38'00", thence to
28°15'00",	91°30'00", thence to

27°40'00", 91°30'00", and thence to the point of beginning.

(NAD 83)

- (c) **Ewing—prohibited area.** This prohibited area consists of the waters bounded by a line connecting the following points beginning at:

<i>Latitude N.</i>	<i>Longitude W.</i>
27°53'00",	91°30'00", thence to
28°15'00",	91°30'00", thence to
28°15'00",	90°10'00", thence to
27°53'00",	90°10'00", and thence to the point of beginning.

(NAD 83)

[CGD 93-081, 60 FR 45017, Aug. 29, 1995, as amended by USCG-2010-0194, 80 FR 5935, Feb. 4, 2015]

§ 156.320 Maximum operating conditions.

Unless otherwise specified, the maximum operating conditions in this section apply to tank vessels operating within the lightering zones designated in this subpart.

- (a) A tank vessel shall not attempt to moor alongside another vessel when either of the following conditions exist:
- (1) The wind velocity is 56 km/hr (30 knots) or more; or
 - (2) The wave height is 3 meters (10 feet) or more.
- (b) Cargo transfer operations shall cease and transfer hoses shall be drained when—
- (1) The wind velocity exceeds 82 km/hr (44 knots); or
 - (2) Wave heights exceed 5 meters (16 feet).

§ 156.330 Operations.

- (a) Unless otherwise specified in this subpart, or when otherwise authorized by the cognizant Captain of the Port (COTP) or District Commander, the master of a vessel lightering or conducting STS Operations in a zone designated in this subpart must ensure that all officers and appropriate members of the crew are familiar with the guidelines in paragraphs (b) and (c) of this section and that the requirements of paragraphs (d) through (l) of this section are complied with.
- (b) Lightering and STS operations must be conducted in accordance with the Ship to Ship Transfer Guide, (Petroleum) (incorporated by reference, see § 156.111) to the maximum extent practicable.

- (c) Helicopter operations must be conducted in accordance with the Guide to Helicopter/Ship Operations (incorporated by reference, see § 156.111) to the maximum extent practicable.
- (d) The vessel to be lightered, or the discharging vessel engaged in an STS Operation, must make a voice warning prior to the commencement of lightering activities or STS Operations via channel 13 CHF and 2182 Khz. The voice warning shall include—
 - (1) The names of the vessels involved;
 - (2) The vessels' geographical positions and general headings;
 - (3) A description of the operations;
 - (4) The expected time of commencement and duration of the operation; and
 - (5) Request for wide berth.
- (e) In the event of a communications failure between the lightering vessels, or vessels engaged in STS Operations, or the respective persons-in-charge of the transfer, or an equipment failure affecting the vessel's cargo handling capability or ship's maneuverability, the affected vessel must suspend lightering activities, or STS Operations, and must sound at least five short, rapid blasts on the vessel's whistle. Lightering activities, or STS Operations, must remain suspended until corrective action has been completed.
- (f) No vessel involved in a lightering operation, or STS Operation, may open its cargo system until the servicing vessel is securely moored alongside the vessel to be lightered (or the vessel transferring oil in an STS Operation).
- (g) If any vessel not involved in the lightering operation, STS Operation, or support activities approaches within 100 meters of vessels engaged in lightering or STS Operation, the vessel engaged in lightering or STS Operation shall warn the approaching vessel by sounding a loud hailer, ship's whistle, or any other appropriate means.
- (h) Only a lightering tender, a supply boat, or a crew boat, equipped with a spark arrestor on its exhaust, or a tank vessel providing bunkers, may moor alongside a vessel engaged in lightering operations or STS Operations.
- (i) Lightering operations and STS Operations must not be conducted within 1 nautical mile of offshore structures or mobile offshore drilling units.
- (j) No vessel engaged in lightering activities or STS Operations may anchor over charted pipelines, artificial reefs, or historical resources.
- (k) All vessels engaged in lightering activities or STS Operations must be able to immediately maneuver at all times while inside a designated lightering zone. The main propulsion system must not be disabled at any time.
- (l) In preparing to moor alongside the vessel to be lightered or vessel transferring oil in an STS Operation, a service vessel shall not approach the vessel closer than 1000 meters unless the service vessel is positioned broad on the quarter of the vessel transferring oil. The service vessel must transition to a nearly parallel heading prior to closing to within 50 meters of the vessel transferring oil.

[USCG-2010-0194, 80 FR 5935, Feb. 4, 2015, as amended by USCG-2015-0433, 80 FR 44282, July 27, 2015]

Subpart D—Prevention of Pollution During Transfer of Oil Cargo Between Oil Tankers at Sea

Source: 80 FR 5936, Feb. 4, 2015, unless otherwise noted.

§ 156.400 Applicability.

- (a) This subpart applies to oil tankers engaged in the ship-to-ship transfer of oil cargo between oil tankers (STS Operations), and to their STS Operations conducted on or after April 1, 2012, when at least one of the oil tankers is of 150 gross tonnage and above. These rules are in addition to the rules of subpart A of this part, as well as the rules in the applicable sections of parts 151, 153, 155, 156, and 157 of this chapter.
- (b) This subpart does not apply to STS Operations—
 - (1) If the oil cargo is intended only for use as a fuel or lubricant aboard the receiving vessel (bunker operations);
 - (2) When at least one of the ships involved in the oil transfer operation is a warship or a naval auxiliary or other ship owned or operated by a nation and used, at the time of the transfer, in government noncommercial service only; or
 - (3) When the STS Operations are necessary for the purpose of securing the safety of a ship or saving life at sea, or for combating specific pollution incidents in order to minimize the damage from pollution; except that such vessels are subject to the requirements of §§ 156.415(g) and 156.420.

§ 156.405 Definitions.

In addition to the definitions specifically stated in this section, the definitions in § 154.105 of this chapter apply to this subpart except definitions for Tank Barge, Tank Ship and Tank Vessel. Definitions specific to this part—

Authorized Classification Society means a recognized classification society that has been delegated the authority to conduct certain functions and certifications on behalf of the Coast Guard.

Flag State means the authority under which a country exercises regulatory control over the commercial vessel which is registered under its flag. This involves the inspection, certification, and issuance of safety and pollution prevention documents.

Marine environment means—

- (1) The navigable waters of the United States;
- (2) The waters of an area over which the United States asserts exclusive fishery management authority; and
- (3) The waters superjacent to the Outer Continental Shelf of the United States.

Oil tanker means a vessel that is constructed or adapted primarily to carry crude oil or products in bulk as cargo. This includes a tank barge, a tankship, and a combination carrier, as well as a vessel that is constructed or adapted primarily to carry noxious liquid substances in bulk as cargo and which also carries crude oil or products in bulk as cargo.

STS Operations means the transfer of oil cargo carried in bulk from one oil tanker to another at sea, when at least one of the oil tankers is of 150 gross tonnage and above.

§ 156.410 General.

- (a) Oil tankers subject to this subpart, and each U.S. oil tanker, wherever located, subject to this subpart, must carry onboard an STS Operations Plan that prescribes how that vessel will conduct STS Operations.
- (b) Any oil tanker subject to this subpart must carry onboard an STS Operations Plan, prescribing how to conduct STS Operations, no later than the date of the first annual, intermediate, or renewal survey of the oil tanker, which must be carried out on or after the effective date of this final rule.
- (c) The STS Operations Plan must be—
 - (1) Written in the working language of the oil tanker's crew;
 - (2) Developed using the information contained in the best practice guidelines for STS Operations identified in the Manual on Oil Pollution and in the Ship to Ship Transfer Guide (Petroleum) (both documents are incorporated by reference, see § 156.111); and
 - (3) Approved by the vessel's Flag State for oil tankers operated under the authority of a country other than the United States. For U.S. oil tankers, the STS Operations Plan must be approved by the Commandant (CG-CVC-1) or an Authorized Classification Society.
- (d) When chapter IX of the International Convention for the Safety of Life at Sea, 1974, as amended is applicable to the vessel, the STS Operations Plan may be incorporated into an existing required Safety Management System.
- (e) Any oil tanker subject to this subpart must comply with the vessel's approved STS Operations Plan while engaging in STS Operations.
- (f) The person in overall advisory control of STS Operations must be qualified to perform all relevant duties, taking into account the qualifications found in the best practice guidelines for STS Operations identified in the Manual on Oil Pollution and in the Ship to Ship Transfer Guide (Petroleum) (both documents are incorporated by reference, see § 156.111).
- (g) In addition to any records required by the vessel's approved STS Operations Plan, each STS operation must be recorded in the oil tanker's Oil Record Book, required by § 151.25 of this chapter.
- (h) All records of STS Operations shall be retained onboard for 3 years and be readily available for inspection.
- (i) No oil tanker may transfer oil in a port or place subject to the jurisdiction of the United States, if the oil cargo has been transferred by an STS Operation in the marine environment beyond the baseline, unless:
 - (1) Both oil tankers engaged in the STS Operation have, onboard, at the time of transfer all certificates required by this chapter for transfer of oil cargos, including a valid Certificate of Inspection or Certificate of Compliance, as applicable to any transfer of oil taking place in a port or place subject to the jurisdiction of the United States;
 - (2) Both oil tankers engaged in the STS operation have onboard at the time of transfer, evidence that each vessel is operating in compliance with the National Response System as described in section 311(j) of the Federal Water Pollution Control Act (33 U.S.C. 1321(j)). Additionally, the vessels must comply with the Declaration of Inspection requirements delineated in § 156.150 and a vessel response plan if required under part 155 of this chapter; and

- (3) Both oil tankers engaged in STS Operations have onboard, at the time of transfer, an International Oil Pollution Prevention (IOPP) Certificate or equivalent documentation of compliance with Annex I, as would be required by part 151 of this chapter for vessels in navigable waters of the United States. The IOPP Certificate or documentation of compliance shall be that prescribed by §§ 151.19 and 151.21 of this chapter, and shall be effective under the same timetable as specified in § 151.19.
- (j) In an emergency, the Captain of the Port (COTP), upon request, may authorize a deviation from any requirement in this part if the COTP determines that its application will endanger persons, property, or the environment.

§ 156.415 Notification.

- (a) Except as provided for in paragraphs (f) and (g) of this section, the master, owner or agent of each oil tanker subject to this subpart planning to conduct STS Operations in the territorial sea or exclusive economic zone of the United States must give at least 48 hours advance notice to the COTP nearest the geographic position chosen to conduct these operations. This advance notice must include:
 - (1) The oil tanker's name, call sign or official number, and registry;
 - (2) The cargo type and approximate amount onboard;
 - (3) The number of transfers expected, the amount of cargo expected to be transferred during each transfer, and whether such transfer will be conducted at anchor or underway;
 - (4) The date, estimated time of arrival, and geographical location at the commencement of the planned STS Operations;
 - (5) The estimated duration of STS Operations;
 - (6) The name and destination of receiving oil tanker(s);
 - (7) Identification of STS Operations service provider or person in overall advisory control and contact information; and
 - (8) Confirmation that the oil tanker has onboard an approved STS Operations Plan.
- (b) If the estimated arrival time of an oil tanker to the reported geographic location for the commencement of STS operation changes by more than 6 hours, the master, owner, or agent of that oil tanker must provide a revised estimated time of arrival to the COTP.
- (c) Where STS Operations are conducted as a result of collision, grounding, tank rupture or any similar emergency, the master, owner, or agent of a vessel must give immediate notice to the Coast Guard office.
- (d) In addition to the other requirements in this section, the master, owner, or agent of a vessel that requires a Certificate of Compliance (COC) or other special Coast Guard inspection in order to conduct STS Operations must request the COC or other inspection from the cognizant Officer in Charge, Marine Inspection (OCMI) at least 72 hours prior to commencement of STS Operations.
- (e) The STS Operation advanced notice is in addition to the Notification of Arrival requirements in 33 CFR part 160.
- (f) If all of the information specified in paragraph (a) is not available 48 hours in advance of a planned STS Operation, the oil tanker discharging the oil cargo must notify the COTP at least 48 hours in advance that an STS Operation will occur. In such a circumstances, the information specified in paragraph (a) must be provided to the COTP at the earliest opportunity.

- (g) If STS operations are conducted under exigent circumstances to secure the safety of a ship, to save life at sea, or combat specific incidents in order to minimize the damage from pollution within the territorial sea or exclusive economic zone of the United States, the master, owner, or agent of each oil tanker subject this subpart shall provide notice with adequate explanation, as soon as practicable, to the COTP nearest the geographic position where the exigent STS operation took place.

§ 156.420 Reporting of incidents.

- (a) Any vessel affected by fire, explosion, collision, grounding, or any similar emergency that poses a threat to the vessel(s) engaged in STS Operations must report the incident to the nearest Coast Guard office.
- (b) The POAC of an STS operation must report, in accordance with the procedures specified in § 151.15 of this chapter, any incident of discharge of oil into the water.
- (c) Immediately after the addressing of resultant safety concerns, all marine casualties must be reported to the nearest COTP, Sector Office, Marine Inspection Office, or OCMI in accordance with 46 CFR part 4.